

# Annotation guidelines

Annotators are required to extract obligations, prohibitions, and permissions from acts of UK legislation and rephrase them into the following *structured templates*:

- (1) IT IS (OBLIGATORY or PROHIBITED or PERMITTED)  
FOR someone  
TO do something  
(WHEN or IF or WHERE or ONLY IF or BEFORE or AFTER or UNLESS  
or SUBJECT TO or etc.) some conditions apply

The slots IT IS, FOR, and TO are *mandatory* (i.e., they occur in every annotation), while conditions are *optional*: annotations may include no conditions, a single condition, or multiple conditions. In most cases, annotations include at most two conditions. Each condition is identified by keywords such as WHEN, IF, WHERE, ONLY IF, BEFORE, AFTER, UNLESS, or SUBJECT TO.

Annotators are required to *copy* text from UK Acts and *paste* it into the corresponding template slots, while possibly rephrasing it to ensure grammatical correctness and fluency. Furthermore, where multiple options are available for a given slot, annotators must *select* the option that best fits the intended meaning (e.g., choosing between OBLIGATORY, PROHIBITED, and PERMITTED) or, where necessary, enter the value manually. Annotators are also required to manually indicate, in the final annotations, the index of the subsection(s) from which the copied text is taken, to support the creation of links between the annotations and the original act via post-processing.

A Web tool is provided for the task. The tool will save the annotations in a text file that the annotators can manually update, in cases where they change their decisions.

The annotations so created might be very useful for AI/LegalTech applications; for instance, they can be used to train Large Language Models such as OpenAI's GPT, with the aim of *automatically* analysing legislation.

The rest of this document shows examples of annotations as well as general directions that the annotators should follow to carry out the annotation task.

# 1 Some simple examples

Let's start with some simple examples of the task: the obligations for UK drivers and riders available at <https://www.gov.uk/legal-obligations-drivers-riders>. The text of the first norm is:

- (2) Before you drive or ride you must have the correct driving licence

The straightforward annotation of this example appears to be the following:

- (3) IT IS OBLIGATORY  
FOR you  
TO have the correct driving licence  
BEFORE you drive or ride

However, (3) is not the single way in which the template might be filled with respect to the example in (2). For instance, the pronoun “you” does not only refer to the reader(s) of the norm; in the intended meaning of (2) is that the *everyone* is subject to the obligation. In light of this, an annotator could decide to *rephrase* the copied and pasted text as follows:

- (4) IT IS OBLIGATORY  
FOR everyone  
TO have the correct driving licence  
BEFORE driving or riding

It is even possible to rephrase the obligation in (4) into a prohibition, while changing the keyword on the condition from BEFORE to UNLESS and by further rephrasing the texts in the slots, as follows:

- (5) IT IS PROHIBITED  
FOR a person  
TO drive or ride  
UNLESS the person has the correct driving licence

The annotators must be aware that:

**IMPORTANT:** all variants listed in (3)-(5) are correct annotations of (2): they are all paraphrases of the same meaning conveyed by the sentence. Still, since the task should be “as natural as possible”, annotators are required to annotate the obligations, permissions, and prohibitions *while minimally changing the original wording*. In other words, they should not “think too much” about the proper way to fill in the form’s fields. In light of this, they should prefer the annotation in (3).

As a second example, consider (6), which is also taken from <https://www.gov.uk/legal-obligations-drivers-riders>:

(6) You must:

- be supervised by a qualified driver (except if riding a motorcycle)

In this example, the text in round brackets, which denotes an *exception* introduced by the conditional exception phrase “except if”, must be isolated as follows:

(7) IT IS OBLIGATORY

FOR you

TO be supervised by a qualified driver

EXCEPT IF riding a motorcycle.

It is worth noting that the resulting annotation preserves a *passive* construction. Annotators might be tempted to reformulate the norm into an *active* form, i.e., by stating that “it is obligatory for a qualified driver to supervise you etc.”, but such a transformation would require *substantial* rephrasing of the original legal text. This would be contrary to the principle set out above, which requires minimal modification and only changes strictly necessary for fluency within the template.

**IMPORTANT:** the text of the final annotations must always read grammatically and fluently. To double-check so, annotators are invited to read the final template as a whole, e.g.: “it is obligatory for you to be supervised etc.”. In cases where the text in the template contains grammatical errors (e.g., misaligned plurals and singulars) or it does not read smoothly, annotators are required to rephrase it in order to make it grammatical and fluent.

Similar “temptations” may arise when the subject is an *inanimate object*, which of course cannot be responsible for complying with the obligation. Consider:

(8) The vehicle must:

- be registered with DVLA

The obligation of course applies to *the owner* of the vehicle, not to the vehicle itself, so that a meticulous annotator could decide to spell this out in the FOR slot.

Although such a choice would make perfect sense, annotators are again encouraged to avoid making implicit content explicit, unless this is strictly necessary. These guidelines are intended to promote *consistent annotation* across annotators. In light of this, the suggested annotation of the obligation in (8) is:

(9) IT IS OBLIGATORY

FOR the vehicle

TO be registered with DVLA.

i.e., with the **FOR** slot applying to the (inanimate) subject of the passive verb, even if it appears a bit “weird” for an inanimate object to be obliged to do something.

Note also that the annotation in (9) does not have any condition; as explained earlier, only the first three slots of the template are mandatory while conditions are optional.

The rest of the document will show annotations of more complex examples, taken from the Equality Act 2010<sup>1</sup> and the Police, Crime, Sentencing and Courts Act 2022<sup>2</sup>.

## 2 Regulative and constitutive norms

Legal theory usually distinguishes between *regulative norms* and *constitutive norms*. The former are obligations, permissions, and prohibitions; the latter are definitions of the legal concepts used in the regulative norms.

**IMPORTANT:** only regulative norms must be annotated. Moreover, again to minimize copying, pasting, and rephrasing, the definitions of the legal concepts used in the regulative norms should not be copied and pasted in the template’s slots.

Let’s see an example: the annotation of the first three paragraphs of Article 1 of the Police, Crime, Sentencing and Courts Act 2022:

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<sup>1</sup><https://www.legislation.gov.uk/ukpga/2010/15>

<sup>2</sup><https://www.legislation.gov.uk/ukpga/2022/32>

- (10) (1) The Secretary of State must in each financial year—
- (a) prepare a police covenant report, and
  - (b) lay a copy of the report before Parliament.
- (2) A police covenant report is a report about—
- (a) the health and well-being of members and former members of the police workforce,
  - (b) the physical protection of such persons,
  - (c) the support required by members of their families, and
  - (d) any other matter in relation to members or former members of the police workforce, or a particular description of such persons, that the Secretary of State considers appropriate, so far as these matters relate to the fact that the persons concerned are members or former members of the police workforce.
- (3) In preparing a police covenant report the Secretary of State must have regard in particular to—
- (a) the obligations of and sacrifices made by members of the police workforce, and
  - (b) the principle that it is desirable to remove any disadvantage for members or former members of the police workforce arising from their membership or former membership.

The first and the third paragraphs in (10) convey two obligations for the Secretary of State. These might be respectively annotated as in (11) and (12):

- (11) **IT IS OBLIGATORY**  
**FOR** the Secretary of State  
**TO** (a) prepare a police covenant report, and (b) lay a copy of the report before Parliament.  
**IN** each financial year.
- (12) **IT IS OBLIGATORY**  
**FOR** the Secretary of State  
**TO** have regard in particular to (a) the obligations of and sacrifices made by members of the police workforce, and (b) the principle that it is desirable to remove any disadvantage for members or former members of the police workforce arising from their membership or former membership.  
**IN** preparing a police covenant report.

On the other hand, the second paragraph in (10) does not contain any obligation, prohibition, or permissions but it only *defines* what a police covenant report is. In other words, the second paragraph only adds further details to describe a concept used in the other

two paragraphs. In the literature it is usually said that the second paragraph contains a *constitutive norm*, i.e., a definition of a legal concept used in the regulative norms.

As stated earlier, the annotation task only focuses on regulative norms while definitions, i.e., constitutive norms, must be ignored. Therefore, in the example above a “police covenant report” can be taken for granted and so there is no need to copy and paste its definition in the template’s slots. In other words, annotators should **NOT** expand the condition in (12) as follows:

**IN** preparing a police covenant report, *which is a report about— (a) the health and well-being of members and former members etc.*

but they can just assume that it is well-known what a police covenant report is.

### 3 More complex examples - different conditions

It has been explained above that the annotation task consists of identifying regulative norms from UK acts and filling the provided template by copying and pasting text from these acts. The final text of the template must read grammatically and fluently, which may require annotators to rephrase parts of it. Nevertheless, annotators should try to *minimally* do so, i.e., to keep the text as close as possible to the original one.

Sometimes, it could be hard to fill the template because the original norms contain particular linguistic constructions that mix the text of the conditions with the text of the other slots. For this reason, the template specifies different keywords for the conditions, intended to help the annotators identify them.

Two examples, taken from the Equality Act 2010, are:

- (13) An authority to which this section applies must, *when* making decisions of a strategic nature about how to exercise its functions, have due regard to the desirability of exercising them in a way that is designed to reduce the inequalities of outcome which result from socio-economic disadvantage.

Annotated as follows:

- (14) **IT IS OBLIGATORY**  
**FOR** an authority to which this section applies  
**TO** have due regard to the desirability of exercising its functions in a way that is designed to reduce the inequalities of outcome which result from socio-economic disadvantage  
**WHEN** making decisions of a strategic nature about how to exercise its functions.

and:

- (15) The regulations may provide for an employment tribunal to have power, *where* a person fails to comply with an order to carry out an equal pay audit, to order that person to pay a penalty to the Secretary of State of not more than an amount specified in the regulations.

Annotated as follows:

(16) **IT IS PERMITTED**

**FOR** regulations

**TO** provide for an employment tribunal to have power to order that person to pay a penalty to the Secretary of State of not more than an amount specified in the regulations

**WHERE** a person fails to comply with an order to carry out an equal pay audit.

**WHEN** and **WHERE** (as well as **IF**) are the most common linguistic markers used to introduce conditions on deontic statements. However, variants may also occur, i.e., other prepositions or conjunctions that express the same meaning. A challenging example arises when the preposition “in” is followed by a gerund verb, as already illustrated above in (12). Another example is:

- (17) An authorised person must have regard to the code of practice for the time being in force under section 42 *in exercising, or deciding whether to exercise*, the power in subsection (1).

Annotated as follows:

(18) **IT IS OBLIGATORY**

**FOR** An authorised person

**TO** have regard to the code of practice for the time being in force under section 42

**IN** exercising, or deciding whether to exercise, the power in subsection (1).

The preposition “in” is challenging because, in many cases, it does *not* introduce a condition on the deontic statement. Accordingly, such cases must *not* be annotated. In other words, annotators should not blindly annotate every occurrence of “in” in the original legal text, but only those cases in which this preposition introduces a condition on the deontic statement, as in the two examples discussed above.

Other keywords marking conditions are:

- **BEFORE** or **AFTER**
- **UNLESS**
- **ONLY IF**
- **SUBJECT TO**
- Etc.

The list of keywords marking conditions is left open. The tool provided with these guidelines allows annotators to select the keywords most commonly used to introduce conditions, but it also allows them to manually edit less frequent keywords, as well as the final annotations more broadly. An example of an infrequent keyword introducing a condition is “except if”, as in example (7) above.

**BEFORE** and **AFTER** are not the only prepositions introducing conditions on the temporal validity of the deontic statement. Another example is **ONCE**, as in:

- (19) Once a strategy has been prepared under this section for a local government area, the specified authorities for the area must—
- (a) publish the strategy,
  - (b) keep the strategy under review, and
  - (c) from time to time prepare and implement a revised strategy.

Annotated as follows:

- (20) **IT IS OBLIGATORY**  
**FOR** The specified authorities for a local government area  
**TO**
- (a) publish a strategy prepared under this section for the local government area
  - (b) keep the strategy under review, and
  - (c) from time to time prepare and implement a revised strategy
- ONCE** the strategy has been prepared under this section for the area

In (20), note that, in the template, the text in the slots **FOR** and **ONCE** has been minimally rephrased to correctly align the anaphoric expressions “the strategy” and “the area” with their respective antecedents “a strategy” and “a local government area”; in the template, these are inverted with respect to the original legal text.

Let us now consider an example involving the keyword **ONLY IF**. This keyword typically appears explicitly in the text of the norm, but it is often found in subsections different from those expressing the main deontic statement. An example is Article 146, subsections (1) and (2), of the Equality Act 2010:

- (21) (1) A qualifying person (P) may make a complaint to an employment tribunal that a term is void, or that a rule is unenforceable, as a result of section 145.
- (2) But subsection (1) applies only if—
- (a) the term or rule may in the future have effect in relation to P, and
  - (b) where the complaint alleges that the term or rule provides for treatment of a description prohibited by this Act, P may in the future be subjected to treatment that would (if P were subjected to it in present circumstances) be of that description.



Annotated as follows:

(22) **IT IS PERMITTED**

**FOR** A qualifying person (P)

**TO** make a complaint to an employment tribunal that a term is void, or that a rule is unenforceable, as a result of section 145

**ONLY IF**

- (a) the term or rule may in the future have effect in relation to P, and
- (b) where the complaint alleges that the term or rule provides for treatment of a description prohibited by this Act, P may in the future be subjected to treatment that would (if P were subjected to it in present circumstances) be of that description.

Finally, let's now show some examples using **SUBJECT TO**. This keyword indicates that an obligation, permission, or prohibition applies under certain constraints, which are possibly only mentioned as a reference to another subsection. For example, Article 17ZB, subsection (6) of the Children Act 1989:

(23) (1) Where a local authority—

- (a) are required to carry out a young carer's needs assessment, and
- (b) are required or have decided to carry out some other assessment of the young carer or of the person cared for;

the local authority may, subject to subsection (7), combine the assessments.

is annotated as follows:

(24) **IT IS PERMITTED**

**FOR** a local authority

**TO** combine the assessments

**WHEN/IF/WHERE** the local authority—

- (a) are required to carry out a young carer's needs assessment, and
- (b) are required or have decided to carry out some other assessment of the young carer or of the person cared for

**SUBJECT TO** subsection (7)

In this example, the keyword **SUBJECT TO** reflects the constraint imposed by law. Annotators should not attempt to rephrase or elaborate on the meaning of subsection (7), but just report the link to the subsection as it is.

Another example is subsection (2) of section 5 of the UK Domestic Abuse Act 2021, which states:

- (25) Payments are to be made at such times, and subject to any such conditions, as the Secretary of State considers appropriate.

and it is annotated as follows:

- (26) IT IS OBLIGATORY  
FOR payments  
TO be made at such times as the Secretary of State considers appropriate  
SUBJECT TO any such conditions.

In this example, the phrase "*subject to any such conditions*" introduces a constraint on when or how the action (*payments*) can occur.

**IMPORTANT:** Phrases like *such times* and *such conditions* refer back to definitions found earlier in the legislation, but annotators are **NOT required to spell them out** — only copy and paste the exact wording used.

## 4 Even more complex examples - multiple conditions

It has been explained above that conditions are *optional*, i.e., that there could be instantiations of the template that do not include any condition, e.g., example (9) above. The previous section, on the other hand, only showed examples including a single condition.

This section will present and discuss examples including more than one condition.

An example is Subsection 22(3) of the Police, Crime, Sentencing and Courts Act 2022:

- (27) The Secretary of State must consult the Welsh Ministers before making regulations under this Chapter if and to extent that the regulations make provision that applies in relation to a devolved Welsh authority within the meaning of the Government of Wales Act 2006 (see section 157A of that Act).

Annotated as follows:

- (28) IT IS OBLIGATORY  
FOR The Secretary of State  
TO consult the Welsh Ministers  
BEFORE making regulations under this Chapter  
IF AND TO EXTENT THAT the regulations make provision that applies in relation to a devolved Welsh authority within the meaning of the Government of Wales Act 2006 (see section 157A of that Act)

Note, in (28), the keyword “if and to the extent that”, which introduces the condition attached to the obligation. This is another example of a complex and uncommon keyword that the tool does not allow users to select automatically; therefore, the annotator must manually edit it when filling in the template.

Another example is provided by Section 111 of the Equality Act 2010, where subsections (3) and (7) state:

(29) (3) A person (A) must not induce another (B) to do in relation to a third person (C) anything which is a basic contravention.

(7) This section does not apply unless the relationship between A and B is such that A is in a position to commit a basic contravention in relation to B.

In (29), subsection (7) sets out an exception to the main prohibition in (3). However, because the condition in (7) specifies when the section does *not* apply, the keyword “unless” must be converted to “if” in order to preserve the intended meaning. (29) is therefore annotated as follows:

(30) **IT IS PROHIBITED**  
**FOR** A person (A)  
**TO** induce another (B) to do anything which is a basic contravention  
**IN RELATION TO** a third person (C)  
**IF** the relationship between A and B is such that A is in a position to commit a basic contravention in relation to B

A final complex example of template with *four* conditions is the one associated with subsections (2), (4), and (6) of Article 106 of the Equality Act 2010:

(31) (2) If the party had candidates at a relevant election, the party must, in accordance with regulations, publish information relating to protected characteristics of persons who come within a description prescribed in the regulations in accordance with subsection (3).

(4) The duty imposed by subsection (2) applies only in so far as it is possible to publish information in a manner that ensures that no person to whom the information relates can be identified from that information.

(6) This section does not apply to the following protected characteristics—

- (a) marriage and civil partnership;
- (b) pregnancy and maternity.

Annotated as follows:

(32) **IT IS OBLIGATORY**

**FOR** the party

**TO** publish information relating to protected characteristics of persons who come within a description prescribed in the regulations in accordance with subsection (3)

**IF** the party had candidates at a relevant election

**IN ACCORDANCE WITH** regulations

**ONLY IN SO FAR AS** it is possible to publish information in a manner that ensures that no person to whom the information relates can be identified from that information

**UNLESS** this concerns the following protected characteristics—

- (a) marriage and civil partnership;
- (b) pregnancy and maternity.

Symmetrically to the previous example, since Subsection (6) specifies when the section does *not* apply, the keyword introducing the condition for the obligation in Subsection (2) is changed to “unless”. Note also that the condition has been rephrased as “this concerns...”, which is the formula annotators should use to consistently represent all instances of “this section does not apply”.

The annotation tool does not allow more than two conditions to be inserted, as cases involving more than two conditions are rare. In such cases, annotators are required to manually edit the final annotations.